

		disregard, authorization, ratification or act of oppression, fraud, or malice on the part of an officer, director, or managing agent of Defendant. Therefore, the motion to strike punitive damages is GRANTED. Plaintiff has 20 days leave to amend. Defendant to give notice. Case Management Conference If the parties submit on the tentatives and/or the tentatives become the order of the Court, the Case Management Conference is continued to 11/24/2025 at 08:30 AM in Department C15. If the parties do not submit on the tentatives, the parties through counsel are required to attend the Case Management Conference, either remotely or in the courtroom.
4	Valley Gardens Property Investments, L.P. vs. Pham 2023-01355768	Motion for Leave to File Amended Complaint Plaintiff Valley Gardens Property Investments, L.P.’s Motion for Leave to File an Amended Complaint is GRANTED. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” <i>Code of Civil Procedure</i> § 473(a)(1). “Generally, leave to amend must be liberally granted [citations], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” <i>Solit v. Tokai Bank, Ltd. New York Branch</i> (1999) 68 Cal.App.4th 1435, 1448. Here, the Court granted Defendants’ motion to strike punitive damages on 7/29/24, but the order did not specify whether Plaintiff could file an amended complaint. Plaintiff now seeks to file a

		proposed amended complaint which includes additional facts in the conversion claim at paragraphs 16-18 stating that Defendants' employee deliberately took property which legally belonged to Plaintiff. Defendants contend Plaintiff failed to file an opposition to the motion to strike punitive damages, and Defendant will be prejudiced if the amendment is allowed. However, failure to oppose the motion to strike punitive damages does not preclude Plaintiff from seeking leave to amend, and no trial date has been set, so there is sufficient time for the parties to litigate the merits of the punitive damages claim. Defendants further contend the punitive damages claim lacks merit because the alleged facts reflect breach of contract rather than tortious acts. It appears the amended complaint states facts which could support punitive damages at the pleading stage, but Defendants may raise such arguments in a motion to strike if necessary. Plaintiff shall file and serve the proposed amended complaint within 10 days. Plaintiff to give notice. Case Management Conference If the parties submit on the tentative and/or the tentative becomes the order of the Court, the Case Management Conference is continued to 11/24/2025 at 08:30 AM in Department C15. If the parties do not submit on the tentative, the parties through counsel are required to attend the Case Management Conference, either remotely or in the courtroom.
5	Manighalam vs. Eidemiller 2023-01342618	Motion to Be Relieved as Counsel of Record Motion to Be Relieved as Counsel of Record The motion of attorney Naveen Madala and Madala Law to withdraw as attorney of record for Plaintiffs Shahram Manighalam and Shirin Manighalam is GRANTED. Code of Civil Procedure § 284, California Rules of Court, rule 3.1362. Plaintiffs oppose the motion, arguing they will be prejudiced by the withdrawal and there is no financial conflict or irreconcilable